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Saudi Arabia Cabinet Decision No. 219/1448
On the Approval of the Regulation of the Roads General Authority

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> ***Abrogating:***
>
> ***Saudi Arabia Decision No. 14/1444 dated 4/01/1444 H***

The Cabinet,

After perusal, at its session chaired by the Custodian of the Two Holy Mosques, King Salman bin Abdulaziz Al Saud, of the document received from the Royal Court under No. (911), dated 5/1/1445 H., which includes the telegram of the General Authority for Roads No. (78868), dated 30/12/1444 H., on the draft Regulation of the General Authority for Roads;

The aforementioned Draft Regulation;

The Organisational Arrangements of the General Authority for Roads, issued by Saudi Arabia Decision No. 14/1444, dated 4/1/1444 H.;

Saudi Arabia Cabinet Decision No. 611/1447, dated 22/8/1447 H., on the National Framework for Fees and Financial Consideration;

Memoranda No. (114), dated 5/1/1446 H.; No. (3351), dated 11/10/1446 H.; No. (4162), dated 28/12/1446 H.; No. (832), dated 25/2/1447 H.; and No. (1462), dated 17/4/1447 H., as well as Minutes No. (136), dated 26/11/1447 H., prepared by the Bureau of Experts at the Cabinet;

Minutes No. (1925/47/M), dated 25/12/1447 H., prepared by the Council of Economic and Development Affairs; and

The Recommendation of the General Committee of the Council of Ministers No. (1780) dated 15/2/1448 H.;

Decides as follows:

First: The Regulation of the Roads General Authority is hereby approved in the form attached hereto.

Second: The Regulation referred to in Clause (First) of this Decision shall replace the Organisational Arrangements of the Roads General Authority, issued by Saudi Arabia Decision No. 14/1444, dated 4/1/1444 H.

Third: The Board of Directors of the Roads General Authority shall exercise the powers provided for in Paragraph (12) of Article (6) of the Regulation referred to in Clause (First) of this Decision in accordance with Saudi Arabia Cabinet Decision No. 611/1447, dated 22/8/1447 H., on the National Framework for Fees and Financial Consideration.

Fourth: The Board of Directors of the Roads General Authority, constituted pursuant to Article 5 of the Organisational Arrangements of the Roads General Authority issued by Saudi Arabia Decision No. 14/1444, dated 4/1/1444 H., shall continue to exercise the powers and competences of the Board provided for in Article 6 of the Regulation referred to in Clause (First) of this Decision until the expiry of its term or until a new Board of Directors of the Authority is constituted in accordance with Article 5 of the Regulation, whichever occurs first.

Fifth: The Roads General Authority shall continue to undertake and supervise the operational activities relating to Roads outside urban boundaries, including their planning, design, construction and maintenance, until such activities are assigned to other entities.

Salman bin Abdul Aziz Al Saud

This Decision was published in Umm Al-Qura Official Gazette, Issue No. (5178), dated 8/3/1448 H., p. 7.

Regulation of the Roads General Authority

Article 1

The following terms and expressions, wherever used in this Regulation, shall have the meanings assigned thereto, unless the context requires otherwise:

Authority: Roads General Authority

Regulation: The Regulation of the Authority.

Minister: Minister of Transport and Logistic Services

Chief Executive Officer: The Chief Executive Officer of the Authority.

Board: The Board of Directors of the Authority.

Roads: All Roads in the Kingdom of Saudi Arabia.

Saudi Road Code: The set of standards and specifications relating to the design, construction, operation, maintenance and safety of Roads in accordance with quality, safety and environmental standards.

Article 2

The Authority shall have public legal personality and financial and administrative autonomy. It shall be organisationally linked to the Minister. The principal headquarters of the Authority shall be located in the City of Riyadh, and the Authority may establish branches or offices within the Kingdom as needed.

Article 3

The Authority shall aim to regulate the road sector in a manner that contributes to strengthening the transport and logistic services system in the Kingdom and empowering the entities operating in this sector, thereby supporting economic development in the Kingdom.

Article 4

For the purpose of achieving its objectives and without prejudice to the competences of other relevant entities, the Authority may:

1. Develop general policies relating to its competences, in coordination with the relevant entities.
2. Develop strategic plans for Roads, in coordination with the entities responsible for their implementation and operation, and supervise the implementation of such plans.
3. Propose draft Laws relating to its competences, propose amendments to the Laws in force, and submit the same for completion of the necessary statutory procedures.
4. Endeavour to enhance competitiveness in fields relating to its competences, in coordination with the relevant entities.
5. Develop controls and rules for supporting investment activities and value-added services for Roads outside urban boundaries, including ancillary services, in coordination with other relevant entities.
6. Develop the Saudi Road Code and its annexes, in coordination with other relevant entities, and monitor compliance therewith.
7. Assign certain duties of the Authority to government entities, subject to agreement with the entity to which such duties are assigned, or to the private sector, in accordance with controls approved by the Board and the relevant statutory provisions.
8. Determine the technical requirements for licences and permits relating to the competences of the Authority that are issued by the relevant entities.
9. Conduct technical investigations into accidents arising from the construction and maintenance of Roads outside urban boundaries.
10. Coordinate with other relevant entities to contribute to attracting local and foreign investments and to encourage and create an appropriate investment environment in fields relating to the competences of the Authority.
11. Coordinate with other relevant entities to equip Roads outside urban boundaries with the services necessary to ensure their appropriate use.
12. Coordinate with other relevant entities to establish training and research centres specialising in the road sector.
13. Conduct studies and research relating to the competences and projects of the Authority.
14. Organise, hold and participate in exhibitions and conferences relating to the competences of the Authority, in accordance with the applicable statutory procedures.
15. Represent the Kingdom before international bodies and organisations relating to the competences of the Authority, in accordance with the applicable statutory procedures.
16. Establish a database containing all data relating to road statistics, in coordination with other relevant entities.
17. Build regulatory and technical capacities and support and empower the entities that own, operate or construct road assets to satisfy the requirements issued by the Authority.

Article 5

1. The Authority shall have a Board of Directors chaired by the Minister and comprising the following members:

    a- The Chief Executive Officer.

    b- A representative of the Ministry of Energy.

    c- A representative of the Ministry of Interior.

    d- The representative of the Ministry of Finance.

    e- A representative of the Ministry of Municipalities and Housing.

    f- A representative of the Ministry of Transport and Logistic Services.

    g- A representative of the Transport General Authority.

    h- A representative of the Saudi Contractors Authority.

    i- A representative of the Development Authorities Support Centre.

    j- Two members from the private sector with expertise relevant to the road sector, who shall be appointed by an order of the Prime Minister based on the nomination of the Minister. Their term of membership shall be three (3) years, renewable once.

2. Representatives of government entities shall hold a rank no lower than Rank Fourteen or its equivalent.
3. In the absence of the Chairman, the Chairman may delegate any Board member representing a government entity, other than the Chief Executive Officer, to chair the Board.

Article 6

The Board shall be the supreme authority of the Authority. It shall be responsible for supervising and managing the affairs of the Authority and may exercise all powers and adopt all decisions necessary to achieve its objectives within the limits of this Regulation. In particular, the Board may:

1. Approve general policies relating to the competences of the Authority.
2. Approve strategic plans for Roads.
3. Supervise the Authority's performance of the duties assigned to it.
4. Approve the plans, policies and programmes of the Authority and monitor their implementation.
5. Approve the controls and rules for supporting investment activities and value-added services for Roads outside urban boundaries, including ancillary services.
6. Approve the Saudi Road Code and its annexes and monitor compliance therewith.
7. Approve the controls governing the assignment of certain duties of the Authority to government entities, following agreement with such entities, or to the private sector, in accordance with the statutory procedures.
8. Consider all matters relating to the privatisation of Roads outside urban boundaries and submit the same in accordance with the statutory provisions governing privatisation.
9. Approve the technical requirements for licences and permits relating to the competences of the Authority.
10. Approve the organisational structure and organisational manual of the Authority.
11. Approve the administrative and financial regulations of the Authority and any other regulations necessary for the conduct of its business, provided that the administrative regulations shall be approved in agreement with the Ministry of Human Resources and Social Development, and the financial regulations and any provisions having financial implications in other regulations shall be approved in agreement with the Ministry of Finance.
12. Approve the financial consideration payable for the use of Roads outside urban boundaries and their rights-of-way and determine the methods for its collection, in accordance with the relevant statutory procedures and mechanisms.
13. Approve the establishment of branches and offices of the Authority within the Kingdom.
14. Consider the periodic reports submitted on the progress of work at the Authority and its financial position.
15. Approve the budget, final accounts, annual report and auditor's report of the Authority and submit the same in accordance with the applicable statutory procedures.
16. Approve the conclusion of agreements, protocols and contracts in accordance with the applicable statutory procedures.
17. Accept gifts, subsidies, grants, bequests, donations and endowments in accordance with the applicable statutory procedures.
18. Appoint an external auditor and an internal financial controller for the Authority.

The Board may delegate its competences set forth in Paragraphs 16 and 17 of this Article to its Chairman, any Board member it deems appropriate or any member of the Authority's personnel.

The Board may form standing and temporary committees comprising Board members or other persons and assign to them such duties as it deems appropriate. The decision forming each committee shall specify its chair, members and competences. Each committee may seek the assistance of any person it deems appropriate in performing the duties assigned to it.

Article 7

1. Meetings of the Board shall be held at the principal headquarters of the Authority under the chairmanship of the Chairman or the Chairman's delegate. Where necessary, meetings may be held at another location within the Kingdom.
2. The Board shall meet periodically at least four (4) times each year. The Chairman or the Chairman's deputy may convene a meeting whenever necessary or upon the request of at least one-third of the members. The notice convening the meeting shall be accompanied by its agenda.
3. A meeting shall be valid if attended by a majority of the members, including the Chairman or the Chairman's deputy. Decisions shall be adopted by a majority vote of the members present. In the event of a tie, the side with which the chair of the meeting voted shall prevail.
4. A Board member may not abstain from voting or authorise another member to vote on their behalf in their absence. A dissenting member may have their objection and the reasons therefor recorded in the minutes of the meeting.

5. The deliberations and decisions of the Board shall be recorded in minutes signed by the chair of the meeting and the members present.
6. Where necessary and in urgent cases, as determined by the Chairman or the Chairman's deputy, meetings may be held and votes cast remotely using technological means. Decisions may also be adopted by circulation among the members and shall be signed as evidence that all members have reviewed them. Decisions adopted in this manner shall not be valid unless they have been circulated to all members, voted upon by all members and approved by a majority thereof.
7. The Board shall have a secretary selected from among the Authority's personnel by the Chairman, based on the nomination of the Chief Executive Officer. The secretary shall undertake the secretariat functions of the Board, prepare for its meetings and record its minutes, deliberations and decisions. The secretary shall attend Board meetings without having the right to vote.
8. The Board may invite such specialists and advisers as it deems appropriate to attend its meetings without having the right to vote.
9. Decisions that the Board considers necessary to communicate to licensees or persons dealing with the Authority's services shall be published in the Official Gazette and by any other means the Board deems appropriate, provided that such publication does not prejudice the public interest or business secrets. The Authority shall directly notify the entities concerned of such decisions by the appropriate means.

Article 8

The Authority shall have a Chief Executive Officer, who shall be appointed and removed from office by a decision of the Board based on the nomination of the Chairman. The decision shall determine the Chief Executive Officer's remuneration and other financial benefits in a manner that does not conflict with the relevant Laws and decisions. The Chief Executive Officer shall be responsible for managing the Authority and conducting its business. Within the limits prescribed by this Regulation and determined by the Board, the Chief Executive Officer shall, in particular, exercise the following powers:

1. Propose general policies relating to the competences of the Authority and submit them to the Board for approval.
2. Propose strategic plans for Roads and submit them to the Board for approval.
3. Propose the plans, policies and programmes of the Authority, submit them to the Board for approval and implement them following their approval.
4. Propose the controls and rules for supporting investment activities and value-added services for Roads outside urban boundaries, including ancillary services, and submit them to the Board for approval.
5. Propose the Saudi Road Code and its annexes, submit them to the Board for approval and monitor compliance therewith following their approval.
6. Propose the controls governing the assignment of certain duties of the Authority to government entities or the private sector and submit them to the Board for approval.
7. Propose the technical requirements for licences and permits relating to the competences of the Authority and submit them to the Board for approval.
8. Supervise the preparation of the organisational structure and organisational manual of the Authority, its administrative and financial regulations and any regulations necessary for the conduct of its business, and submit them to the Board for approval.
9. Follow up on the implementation of decisions issued by the Board and other decisions relating to the business of the Authority.
10. Sign agreements, protocols and contracts following the approval of the Board and in accordance with the applicable statutory procedures.
11. Contract with the personnel of the Authority in accordance with its approved regulations.
12. Authorise expenditure from the approved budget and undertake financial procedures in accordance with the prescribed Laws and regulations and the powers delegated to the Chief Executive Officer by the Board.
13. Organise the Authority's participation in regional and international exhibitions and conferences relating to the road sector.
14. Issue the decisions necessary for implementing this Regulation, the regulations issued pursuant thereto, and the approved rules and procedures, in accordance with the powers conferred upon the Chief Executive Officer.
15. Supervise the Authority's personnel and exercise the financial and administrative competences and powers conferred upon the Chief Executive Officer in accordance with this Regulation and as prescribed by the regulations.
16. Supervise the preparation of the Authority's draft budget, annual report and draft final accounts and submit them to the Board for approval.
17. Submit periodic reports to the Board on the progress of work at the Authority and its financial position.
18. Approve the plans and programmes necessary for training, scholarships and the dispatch of the Authority's personnel on assignments in all fields of the Authority's competence, and monitor their implementation.

19. Represent the Authority before judicial and administrative bodies and other entities within and outside the Kingdom and delegate others to do so.
20. Perform any other duty assigned by the Board.

The Chief Executive Officer may delegate any of their powers to other members of the Authority's personnel.

Article 9

The personnel of the Authority shall be subject to the provisions of the Labour Law and the Social Insurance Law.

Article 10

1. The Authority shall have an independent annual budget.
2. The Authority's fiscal year shall be that of the State.

Article 11

1. The Authority's resources shall consist of the following:

   a- Its allocations in the State's general budget.

   b- Financial consideration collected for the services it provides and for the use of Roads outside urban boundaries and their rights-of-way.

   c- Gifts, subsidies, grants, bequests, donations and endowments accepted by the Board in accordance with the Laws.

   d- Any other resource approved by the Board in a manner that does not contradict the laws and instructions.
2. All revenue of the Authority shall be deposited in the Treasury Single Account at the Saudi Central Bank.
3. The Authority shall open an account with the Saudi Central Bank and may open other accounts with any bank licensed to operate in the Kingdom. Disbursements from such accounts shall be made in accordance with the approved budget of the Authority.

Article 12

The Authority shall submit its annual final account to the Prime Minister within ninety (90) days from the end of the fiscal year, and the General Court of Audit shall be provided with a copy thereof.

Article 13

Within ninety (90) days from the beginning of each fiscal year, the Authority shall submit to the Prime Minister an annual report on its achievements during the preceding year, the difficulties it encountered and any proposals it considers appropriate for improving the conduct of its business.

Article 14

Without prejudice to the competences of the General Court of Audit, the Board shall appoint one or more external auditors licensed to operate in the Kingdom to audit the accounts, transactions, statements, budget and final accounts of the Authority. The Board shall determine the auditor's fees. The auditor's report shall be submitted to the Board, and the General Court of Audit shall be provided with a copy thereof following its approval.

Article 15

The Regulation shall come into force on the date of its approval.